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Between prerogative power and legality – reading Ernst Fraenkel's *The Dual State* as an analytical tool for present authoritarian rule

Jan Christoph Suntrup

Käte Hamburger Center for Advanced Study in the Humanities 'Law as Culture', University of Bonn, Germany

ABSTRACT

Ernst Fraenkel's seminal study about Nazi law, in which he described the co-existence of a 'normative state' and a 'prerogative state' as principles of government, is to be rediscovered in the new age of the prerogative. Through a critical reading of *The Dual State* and other important texts by Fraenkel, this article seeks to contribute to the contemporary debate on regime types and governmental power in (at least) three regards: first, by clarifying Fraenkel's concept of and perspective on law; second, by discussing the methodological demands for the beneficial application of the dual state concept; and, third, by showing the usefulness of such an application, even beyond the field of authoritarian states in the narrower sense. Law-eroding prerogative developments cannot only be witnessed in hybrid regimes, but also in democratic states, which resort to reflections and practices of an 'enemy criminal law', and in the European Union's recent crisis politics.

KEYWORDS

New authoritarianism; prerogative power; state of exception; comparative politics; sociology of law; günther Jakobs

1. Introduction: doing justice to a neglected 'classic' in the 'new age of the prerogative'

At the turn of the year 1940/41, the New York branch of Oxford University Press published a book called *The Dual State*. Its author, Ernst Fraenkel, was a Jewish labour lawyer and a committed, yet intellectually independent, social democrat who had fled from the Third Reich to the United States in 1938. Largely written before his escape, and based on his work as a lawyer as well as perilous undercover investigation, *The Dual State* presented the provocative thesis that the pre-war Hitler regime was not a purely arbitrary dictatorship, but rather constituted a form of rule to which law mattered. Fraenkel came to the conclusion that Nazi Germany exhibited a dual structure in its earlier years: Alongside the sovereign 'prerogative state', which was unconstrained by constitutional or any other positive law, there existed a 'normative state', which provided legal certainty in at least some domains, although it bore little resemblance to an established rule of law.

The reception of Fraenkel's ground-breaking study did not follow an even path:¹ While the book immediately received numerous favourable reviews in the Anglophone world, its

CONTACT Jan Christoph Suntrup  jan.suntrup@uni-bonn.de

¹See Jens Meierhenrich, *The Remnants of the Rechtsstaat. An Ethnography of Nazi Law* (OUP 2018) 205–23.

substance was soon overshadowed by Franz Neumann's *Behemoth* (1942/1944),² which offered an analysis of the Nazi state's decomposition over the course of World War II, as well as by post-war conceptions of totalitarianism. In Germany, it was initially registered by just a handful of scholars; however, the first German edition, which did not appear until 1974,³ was critically acclaimed and, despite having a limited audience, swiftly earned the reputation of a 'classic'. Jens Meierhenrich has recently not only prompted the publication of another English edition of *The Dual State*,⁴ but has, through his biographically as well as theoretically proceeding account of Fraenkel's study, raised a monument to his memory. This 're-edition' comes at a fortunate moment, as many contemporary authors only reference the dual state concept for different purposes without bothering to entertain what Fraenkel actually meant by it.

Meierhenrich's book is thus a timely and precious intervention because it discusses the historical context of *The Dual State*, its conceptual apparatus and its value for understanding the contemporary political world, namely the role of law in authoritarian and hybrid regimes. How political regimes govern with and without law is one of the most important political questions of our time, as democracy and substantial constitutionalism are obviously not teleological destinies of social and political development. When Austria's former far-right Minister of the Interior, Herbert Kickl, questioned the validity of international human rights conventions by stating 'I believe that it is up to the law to follow politics and not for politics to follow the law',⁵ in January 2019, it was a stunning reminder that the boundaries of politics and law are always contested, not least in democratic regimes that trust in their constitutional foundation. In the following, I contend that Fraenkel's insights in *The Dual State* are not only of historical interest, but can also analytically contribute to an understanding of today's political and legal developments – despite the present context differing significantly from the injustices and increasing terror of the Hitler state in many regards. But when authoritarian developments (often below the level of full dictatorship),⁶ state of exceptions and emergency politics⁷ justify the suspicion 'that we are entering a new "age of prerogative"',⁸ dealing with an author who has studied the struggle between prerogative power and legal validity first-hand is an obvious choice.

²Franz L. Neumann, *Behemoth. The Structure and Practice of National Socialism* (OUP 1944).

³The book was originally written in German and then revised and translated for the English publication; see Ernst Fraenkel, *The Dual State. A Contribution to the Theory of Dictatorship. With an Introduction by Jens Meierhenrich* (E. A. Shils tr, OUP 2017) xiii.

⁴Fraenkel, *The Dual State* (n 3).

⁵Ralf Bosen, 'Austrian Interior Minister Accused of "Attacking Rule of Law"' (*dw.com [Deutsche Welle]*, 24 January 2019) <<https://www.dw.com/en/austrian-interior-minister-accused-of-attacking-rule-of-law/a-47224454-0>> accessed 16 January 2020.

⁶Thus, authoritarian rule does not coincide with autocracy, because the former is a complex of several elements, such as unfree or manipulated elections, violations of minority rights and due process, restricted freedom of opinion, little tolerance for opposition, a top-down approach to politics and administration, scarce accountability, gender inequality and xenophobia (see Günter Frankenberg, 'Authoritarian Constitutionalism: Coming to Terms with Modernity's Nightmares' in Helena Alviar García and Günter Frankenberg (eds), *Authoritarian Constitutionalism. Comparative Analysis and Critique* (Edward Elgar Publishing 2019) 4). The more authoritarian a regime, the more likely is it that these elements mesh. Some of the authoritarian developments described in this article, however, refer mainly to an authoritarian style of decisionism that bypasses or downplays public opinion, legal provisions and democratic principles.

⁷Jonathan White, 'Emergency Europe' (2015) 63 *Political Studies* 300.

⁸Thomas Poole, 'Judicial Review at the Margins: Law, Power, and Prerogative' (2010) 60 *The University of Toronto Law Journal* 81, 87.

Through a sympathetic but critical reading of *The Dual State* and other important reflections by Fraenkel, this article seeks to contribute to the debate on regime types and governmental power in (at least) three regards: first, by clarifying Fraenkel's concept of and perspective on law; second, by discussing the methodological demands for the beneficial application of the dual state concept; and, third, by showing the usefulness of such an application even beyond the field of authoritarian states in the narrower sense.

To this end, the following part will expound upon the framework of *The Dual State*. Part 2.1. shows that Fraenkel engages in a sociological analysis of law, which sheds light on the social function of law irrespective of its normative value, such as questions of justice. At the same time, Meierhenrich and others often neglect the fact that Fraenkel, with regard to questions of justice, sticks to a natural law narrative that betrays a kind of normative universalism, which, while sometimes seemingly at odds with his sociological perspective, ultimately does not compromise the value of his analysis. Section 2.2. reveals that the duality of the two state 'halves' should not be primarily understood as a set of institutions or agents, but rather as competing and highly dynamic principles of the governmental use of law. Section 3 discusses the scope of the dual state concept and the conditions and limits of its application. Part 3.1. develops the view that certain conditions must be fulfilled to apply this concept in an illuminating way, contrary to Fraenkel's position after the war, which led to the unconvincing identification of dictatorship and dual statehood. Part 3.2. subsequently defends the view that elements of the prerogative state have recently had an astonishing return to democratic states. This will be underlined by a discussion of Günther Jakob's theory of 'enemy criminal law' and respective penal developments in the wake of the 'War on Terror' and security politics. 3.3, the last section, scrutinises Hauke Brunkhorst's provocative proposal to regard the European Union's structural transformation in its handling of the financial crisis as the emergence of a 'European dual state'.

In sum, this article aims to be more than a contribution to legal and political theory and the history of ideas. Rather, it intends to develop criteria and prerequisites for a concept of the 'dual state' that will be valuable for future empirical comparative work on legal and political orders.

2. The framework of the dual state

2.1. Understanding an authoritarian legal system: Fraenkel's conception of law between sociology of law and natural law idealism

The programmatic beginning of Fraenkel's book on Nazi law lives up to the high expectations usually set by a classical piece: 'Martial Law provides the constitution of the Third Reich. The constitutional charter of the Third Reich is the Emergency Decree of February 28, 1933'.⁹ This opening stylistically resembles the first lines of *Political Theology* by Carl Schmitt, whom Fraenkel became acquainted with through Schmitt's lectures at the *Handelshochschule* Berlin;¹⁰ Schmitt's writings became an important point of reference throughout Fraenkel's oeuvre, not least in *The Dual State*. The passage just cited is

⁹Fraenkel, *The Dual State* (n 3) 3.

¹⁰Simone Ladwig-Winters, *Ernst Fraenkel. Ein politisches Leben* (Campus 2009) 82.

thought-provoking: While the rationale behind the state of exception, as an instrument, is to have it act as a temporary remedy for restoring public order – with the permission to ignore parts of the legal order, such as certain basic rights or ordinary procedures – the Reichstag Fire Decree and the Enabling Act of 24 March 1933, factually had a constitutionalising effect by constructing a ‘permanent emergency’.¹¹ This, in turn, would pave the way for an ‘unconstitutional and permanent dictatorship’¹² in breach of the Weimar Constitution. To describe this revolution, Fraenkel borrows what Schmitt dubs a ‘sovereign dictatorship’,¹³ which to him is a rule that effaces the existing legal order with the aim of installing a new political order.¹⁴ What distinguishes such an exercise of authority from ‘sheer power’ is, to Schmitt’s mind, its link to ‘the *pouvoir constituant*, which cannot be eliminated by any opposing constitution’¹⁵ – or indeed any basic laws. Thus, while sovereign dictatorship cannot be legally valid, it can be legitimated by deriving from the amorphous *pouvoir constituant*. This derivation, however, is not a formal mandate, but rather exists in the sovereign dictator’s ‘appeal’ to the ideally ‘ever present people’.¹⁶

Fraenkel – even before becoming a well-known neo-pluralist theoretician after the Second World War – was allergic to such a dangerous voluntarist mystification of the people and, what is more, he was far from sharing Schmitt’s general glorification of law-breaking measures and the state of exception.¹⁷ When Fraenkel becomes witness of the Nazi regime eradicating democracy, however, he does not stick to the popular view that this dictatorship constitutes a regime merely based on brute force. He similarly does not attribute it to pure arbitrariness, although he never leaves any doubt about the terrorising effects of the regime, even before systematic mass murder set in. By taking a sociological approach to legal matters, Fraenkel abstained from a simple dichotomy of law and arbitrary power. The basic idea of *The Dual State* is that, despite a quasi-constitutional foundation based on the state of exception that allowed a form of permanent unconstrained ‘emergency’ government, there were remnants of legality under National Socialist rule. Jens Meierhenrich has extensively discussed the context and implications

¹¹Fraenkel, *The Dual State* (n 3) 57.

¹²*ibid* 5.

¹³The English text speaks of the difference between ‘mandatory dictatorship’ (i.e. the legal provision of a temporary dictator with clearly delimited exceptional powers) and ‘absolute dictatorship’ (Fraenkel, *The Dual State* (n 3) 5). However, I suggest using the terms ‘commissary dictator’ and ‘sovereign dictator’, which are closer to the original terminology used by Schmitt (*kommissarische* and *souveräne Diktatur*) and also employed in the translation of Schmitt’s work.

¹⁴Carl Schmitt, *Dictatorship. From the Origin of the Modern Concept of Sovereignty to Proletarian Class Struggle* (Michael Hoelzl and Graham Ward tr, Polity 2014) 119.

¹⁵*ibid* 121.

¹⁶*ibid* 127.

¹⁷Reviewing a book about Schmitt and the state of exception from 1957, he acidly comments that Schmitt failed to become the Montesquieu of the Third Reich: ‘Instead of writing a book about the spirit of the laws, he has merely composed a large number of essays on the spirit of lawlessness’ (my translation: ‘Carl Schmitt hatte den Ehrgeiz, der Montesquieu des Dritten Reichs zu werden. Dies ist ihm nicht gelungen. Er hat kein Buch über den Geist der Gesetze, sondern lediglich zahlreiche Essays über den Geist der Gesetzlosigkeit verfaßt’ (Ernst Fraenkel, ‘Zur Auseinandersetzung mit Carl Schmitt’ [1957] in Fraenkel, *Gesammelte Schriften* vol 2: *Nationalsozialismus und Widerstand* (Alexander v. Brünneck ed, Nomos 1999) 595, 598)). Two and a half decades before, during the final phase of the Weimar Republic, Fraenkel criticises the disempowerment of parliament and the routine of rule by emergency decrees, in which he sees a violation of the democratic citizens’ sense of justice and a preponderance of a bureaucratic framing of political decisions as ‘necessities’ (Ernst Fraenkel, ‘Chronik (April 1932)’ in Fraenkel, *Gesammelte Schriften* vol 1: *Recht und Politik in der Weimarer Republik* (Hubertus Buchstein and Rainer Kühn eds, Nomos 1999) 571, 573). He thereby foreshadows the present-day unmasking of technocracy often supported by ‘TINA’ narratives (‘There is no alternative’ (see Astrid Séville, ‘There is no alternative’: *Politik zwischen Demokratie und Sachzwang* (Campus 2018))).

of this thesis, which leads to the heart of the *Methodenstreit* between legal positivists and their critics in the Weimar Republic. Moreover, his insights likewise enrich the famous debate on the concept and essence of law between H.L.A. Hart and Lon Fuller in the *Harvard Law Review* – especially as the assessment of Nazi law played a prominent role in this exchange on the moral qualities of law. As we will see now, however, clearly locating Fraenkel on the battlefield populated by legal positivists and natural law advocates is no easy task, especially given the varieties of positivisms and natural law conceptions. Fraenkel's research agenda, which did not prioritise the development of a conceptually stringent legal theory, also blurs his exact stance. Nonetheless, it might be an instructive endeavour to sketch some of Fraenkel's main positions in these debates.

A first approach to better understand Fraenkel's view on law rests in comparing it with that of his former legal partner and rivalling analyst of National Socialism, Franz Neumann. As Meierhenrich shows, Neumann's interpretation of the Nazi (dis-)order in *Behemoth* clung to a substantive and ideal concept of law that let him categorically dismiss Nazi rule as a state of lawlessness – despite acknowledging that laws and legal institutions with a technical character did exist in the Third Reich.¹⁸ This depiction of lawlessness fitted the title-lending metaphor of the behemoth, which 'conjured an image of institutional anarchy'¹⁹ and a relapse into a state of nature – a condition that follows only from a sociologically undifferentiated Hobbesian perspective.²⁰ Regardless of several flaws, Neumann's interpretation was at least initially far more influential than Fraenkel's, as, for instance, Hannah Arendt's interpretation of Nazi rule assumed this idea of lawlessness.²¹

At the same time, Fraenkel tries to make sense of the function of everyday Nazi law, adopting a sociological or even, from his insights as an advocate in Germany until 1938, ethnographical perspective on law that largely detaches the empirical validity of law from its moral (or in this case highly immoral and inhuman) attributes. Methodically, he thereby used what Meierhenrich described as 'the conventional, positivist understanding of law that was dominant in his time as an analytical standard against which to measure the everyday life of Nazi law'.²² Hans Kelsen was certainly the most prominent and radical thinker among Fraenkel's contemporaries in this regard, as he linked the objective validity of a legal order in a purely procedural fashion to its derivation from a basic norm regardless of any moral standard: 'Every by and large effective coercive order can be interpreted as an objectively valid normative order. The validity of a positive legal order cannot be denied because of the content of its norms'.²³ Fraenkel's defence of

¹⁸Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 40–43.

¹⁹*ibid* 28.

²⁰Stefan Breuer, 'Ernst Fraenkel und die Struktur faschistischer Herrschaft. Zur Kritik der Doppelstaats-These' in Hartmut Aden (ed), *Herrschaftstheorien und Herrschaftsphänomene* (VS Verlag für Sozialwissenschaften 2004) 39, 51.

²¹Arendt's seminal work on totalitarianism (a term she applies to Stalinism and the whole period of Nazi reign), which repeatedly quotes Neumann, seems to contradict this thesis at first glance by stating that totalitarian rule – in contrast to tyranny – was 'far from being "lawless"' (Hannah Arendt, *The Origins of Totalitarianism. New Edition with Added Prefaces* (Harcourt, Brace & Company 1979) 461). But this actual lawfulness consists, in her view, in the project of realizing the laws of nature (race) or history (Marxist teleology) while absolutely defying the principles of legality and positive law (*ibid* 462). Thus, the verdict of lawlessness, which is tempting when looking at authoritarian government from a constitutionalist or political theory angle and focusing on the legally assured limitation of authority, re-enters through the backdoor.

²²Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 39.

²³Hans Kelsen, *Pure Theory of Law* (Max Knight tr, University of California Press) 217.

the emerging discipline of legal sociology²⁴ made him a natural critic of the *Staatsrechtspositivismus* as developed by Paul Laband, which sought to keep the systematic study of law free from historical, political or philosophical insights.²⁵ Moreover, while concurring with Kelsen in assuming that the immorality and injustice of normative orders does not imply their disqualification as 'law', Fraenkel remains unconvinced of Kelsen's strictly positivistic approach.

Thus, on the one hand, Fraenkel is unambiguous about the fact that no modern state or society can exist without legal instruments, as they ensure 'that their government bodies' and officials' acts are, to a certain degree, predictable. To assume that totalitarian dictatorships entirely lack formal rationality and constitute solely arbitrary rule would be a tragic misjudgement and underestimation of the opponent'.²⁶ This is an institutionalist or functionalist²⁷ argument, which is also reflected in later positivist accounts of law.²⁸ On the other hand, Fraenkel considers both Schmitt's existential decisionism and Kelsen's pure theory of law as forms of 'ethical nihilism'.²⁹ The criticism of Kelsen is motivated by Fraenkel's will to defend an ethical conception of *Rechtsstaatlichkeit*. From his positivist perspective, Kelsen famously considered every state a 'Rechts-Staat' characterisable by its ability to fabricate law.³⁰ Fraenkel refuses to accept this provocative identification of power and rule of law by demanding some ethical, substantive standards to justify the label of *Rechtsstaatlichkeit*. At the same time, Fraenkel is realist enough to see (in a comment to Hermann Heller) the ideological malleability of such a substantial concept, stating that there has probably never been a form of government which did not pretend to serve the ideal of justice.³¹

While Fraenkel's defence of an ethical, substantive understanding of *Rechtsstaatlichkeit* does not strike today's readers as particularly unusual, his adherence to the idea of 'rational natural law' seems more problematic. Narratives of natural law, in his opinion, have not only historically motivated the quest for democracy, rule of law and social justice, but also serve important purposes for current political action.³² Thus, parts of *The Dual State* are meant to demonstrate how National Socialism identified law and morals in a way that violated the principles Fraenkel likely subsumed under the bewildering concept of rational natural law, namely individualism, rationalism, universalism and egalitarianism. These,

²⁴See Ernst Fraenkel, 'Rechtssoziologie als Wissenschaft' [1929] in Fraenkel, *Gesammelte Schriften vol 1* (n 17) 370. There, he stressed the importance of legal sociology as political science (ibid 378–79).

²⁵Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 66.

²⁶My translation: 'Keine moderne Staats- und Gesellschaftsordnung, gleichgültig, ob sie kapitalistisch oder sozialistisch, eine Demokratie oder Diktatur ist, kann darauf verzichten, daß die Handlungen ihrer Staatsorgane und Funktionäre bis zu einem gewissen Grad berechenbar sind. Man würde sich einer tragischen Verkenennung und Unterschätzung des Gegners schuldig machen, wenn man annehmen wollte, daß die totalitäre Diktatur jeglicher formalen Rationalität entbehre und ausschließlich eine Willkürherrschaft darstelle' (Ernst Fraenkel, 'Die Prinzipien des Rechtsstaates' [1953] in Fraenkel, *Gesammelte Schriften vol 5: Demokratie und Pluralismus* (Alexander v. Brünneck ed, Nomos 2007) 357, 359).

²⁷This is meant in the sense that law fulfils important functions of social ordering, even in cases in which it is to be judged illegitimate from a normative point of view. This realist view is not to be confused with a functionalist *definition* of law, through which specific functions of law are used to distinguish law from other normative orders (see Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 230–31).

²⁸Joseph Raz, *Practical Reason and Norms* (OUP 2002) 165.

²⁹Fraenkel, 'Chronik (April 1932)' (n 17) 572.

³⁰Hans Kelsen, *Allgemeine Staatslehre* (J Springer 1925) 91; see Kathrin Groh, *Demokratische Staatsrechtslehre in der Weimarer Republik* (Mohr Siebeck 2010) 359.

³¹Ernst Fraenkel, 'Hermann Heller: Rechtsstaat oder Diktatur' [1930] in Fraenkel, *Gesammelte Schriften vol 1* (n 17) 423, 424.

³²Ernst Fraenkel, 'Naturrecht und positives Recht' [ca. 1953] in Fraenkel, *Gesammelte Schriften vol 5* (n 26) 365, 368.

in turn, form the very opposite of a 'communal natural law' based on a racist ideal of the *Volksgemeinschaft*.³³

For a better understanding of Fraenkel's conception of natural law, it is useful to compare it with some of Lon Fuller's theses stated in the debate with H.L.A. Hart and later fleshed out in the *Morality of Law*. Here, Fuller develops a natural law theory which is not concerned 'with the substantive aims of legal rules',³⁴ by which the legal character of norms would be contingent on their ends, but by a procedural version, which highlights the fact that a legal system should feature several moral principles, such as generality, public promulgation of laws and the denial of retroactive legislation.³⁵ On this account, Fuller expresses serious doubts if there was any Nazi law worthy of this name.³⁶ Fraenkel did not aim to conceive such a comprehensive catalogue for the sake of underlining law's internal morality. Nevertheless, there is a slight analogy to Fuller when Fraenkel attributes one of the most important principles of the rule of law, namely its unconditional validity and inviolability, to natural law conceptions,³⁷ hereby following Gustav Radbruch's prominent interpretation in *Philosophy of Law*,³⁸ which was published shortly before Hitler seized power. Fraenkel agrees with Fuller that legal certainty is of moral value, potentially even on the occasion of unjust laws, for 'as long as the existing laws are strictly applied, we know, at least, what we are dealing with'.³⁹ Moreover, the procedural question of how and when law was applied would serve Fraenkel as an analytic device to distinguish between law and lawlessness; after all, it is his merit to get rid of a purely conceptual approach to this question by empirically showing the possibility of hybrid systems, as well as the simultaneity of respect and disrespect for law in the same political order.⁴⁰

Fraenkel, however, disagreed with Fuller in at least two respects. First, while coinciding with him in the criticism of value-blind legal positivism, he clearly rejected the thesis – popularised by Gustav Radbruch and cautiously endorsed by Fuller⁴¹ and others – that German legal positivism had paved the Nazis' path to power. This thesis has been rejected with good reason,⁴² and Fraenkel demonstrated early on why this is a false view, most notably in a text on the rule of law from the end of Nazi reign: The problem of jurisprudence in the Weimar Republic was not the blind and obedient application of law, but, on the contrary, a lack of statutory positivism, over the course of which 'the individual judge transmuted from a judge-bureaucrat, who was used to finding an answer to every question

³³Fraenkel, *The Dual State* (n 3) 135–37.

³⁴Lon L. Fuller, *The Morality of Law* (rev. ed., Yale University Press 1969) 97.

³⁵See *ibid* 33–94.

³⁶See Lon L. Fuller, 'Positivism and Fidelity to Law: A Reply to Professor Hart' (1958) 71 *Harvard Law Review* 630, 646–60.

³⁷Fraenkel, *The Dual State* (n 3) 107.

³⁸See Gustav Radbruch, *Rechtsphilosophie* (K. F. Koehler Verlag 1950) 288–89.

³⁹My translation: 'Ein Gesetz mag gerecht oder ungerecht sein. Solange die Gewähr dafür geboten ist, daß die bestehenden Gesetze strikt zur Anwendung gebracht werden, wissen wir wenigstens, woran wir sind' (Fraenkel, 'Naturrecht und positives Recht' (n 32) 367).

⁴⁰Hence, Fraenkel would not totally disagree to Fuller's words: 'When a system calling itself law is predicated upon a general disregard by judges of the terms of the laws they purport to enforce, when this system habitually cures its legal irregularities, even the grossest, by retroactive statutes, when it has only to resort to forays of terror in the streets, which no one dares challenge, in order to escape even those scant restraints imposed by the pretence of legality – when all these things have become true of a dictatorship, it is not hard for me, at least, to deny to it the name of law' (Fuller, 'Positivism and Fidelity to Law' (n 36) 660); Fraenkel, however, would answer that this description is not the whole story.

⁴¹See *ibid* 658–61.

⁴²See Stanley L. Paulson, 'Lon L. Fuller, Gustav Radbruch, and the "Positivist" Theses' (1994) 13 *Law and Philosophy* 313.

in the legal code, into a kind of Kadi-judge, who disposed of no other criterion for his decisions other than his “sense of justice”.⁴³ It was this increasing informalisation of jurisdiction that facilitated the Nazis’ practice of applying law contingent on political expediency.

The second point of divergence between Fraenkel and Fuller is the former’s attachment to a much more substantive understanding of natural law, clinging to the idea of universal values, such as specific ideas of justice and injustice,⁴⁴ which would be self-evident in the face of oppression. Thus, Fraenkel’s hope was that the heterogeneous opposition to the Nazi regime could be united in a rational natural law front. After the War, he explicitly founded his neo-pluralist model on the socio-cultural presupposition that the natural law tradition still existed, without giving a satisfactory account of the genesis and validity of these values.⁴⁵

Today, it is hard not to consider this emphatically articulated, though rather unelaborated, concept of rational natural law – as a somewhat outdated element. Furthermore, in Fraenkel’s theory of law, obvious signs of rationalist universalism are at odds with the realist insight into the historical contingency of natural law beliefs.⁴⁶ Yet, while this might be a considerable problem for his pluralistic theory of democracy, his precise sociological view on the role of law in authoritarian regimes remains largely unaffected by this question.

2.2. What is dual about the ‘dual state’ – and where are its frontiers?

‘Germany today lives by dual law’⁴⁷ writes Fraenkel in a 1937 article that presented the ‘dual state’ thesis for the first time. What Fraenkel detects here is a highly conflictual and dynamic element in the dual legal constellation, which can, however, hardly be described as a competition between legal orders (such as concepts of strong legal pluralism would imply). Rather, the concept refers to two methods of government that use law differently. Accordingly, the term ‘dual state’ is neither meant to denote the co-existence of two systems of legal rules that apply to different parts of the population, as long as both legal orders are adhered to,⁴⁸ nor imply a duplication of state structures (and explicitly not

⁴³My translation: ‘Es ist kaum möglich, die Bedeutung dieser Entwicklung zu überschätzen, in deren Verlauf der einzelne Richter sich von einem Richterbürokraten, der gewohnt war, auf alle Fragen im Gesetzbuch eine Antwort zu finden, in eine Art Kadi-Richter verwandelte, der außer seinem “Gerechtigkeitsgefühl” keinen Maßstab für seine Entscheidungen besaß’ (Ernst Fraenkel, “Rule of Law” in einer sich wandelnden Welt’ in Fraenkel, *Reformismus und Pluralismus. Materialien zu einer ungeschriebenen politischen Autobiographie* (Falk Esche and Frank Grube eds, Hoffmann und Campe 1973) 258, 269).

⁴⁴Fraenkel, ‘Naturrecht und positives Recht’ (n 32) 368.

⁴⁵Ernst Fraenkel, *Deutschland und die westlichen Demokratien* (9th ext ed, Nomos 2011) 89; see Frank Schale, ‘Fraenkel und die Aneignung der Naturrechtslehre’ in Robert Chr. van Ooyen and Martin H. W. Möllers (eds), *(Doppel-)Staat und Gruppeninteressen. Pluralismus – Parlamentarismus – Schmitt-Kritik bei Ernst Fraenkel* (Nomos 2009), 113, 118–29; Hubertus Buchstein, “Gretchenfrage” ohne klare Antwort – Ernst Fraenkels politikwissenschaftliche Gemeinwohlkonzeption’ in Harald Bluhm and Herfried Münkler (eds), *Gemeinwohl und Gemeinnutz: Zwischen Normativität und Faktizität* (De Gruyter 2002), 217, 231–35.

⁴⁶See Fraenkel, ‘Naturrecht und positives Recht’ (n 32) 368.

⁴⁷My translation: ‘Deutschland lebt heute nach doppeltem Recht’ (Ernst Fraenkel, ‘Das Dritte Reich als Doppelstaat’ [1937] in Fraenkel, *Gesammelte Schriften vol 2* (n 17)) 504, 509.

⁴⁸This is an important clarification that one should keep in mind when trying to transfer the concept of the ‘dual state’ to other social contexts. To name one example, Stephen Humphreys contends that ‘both conceptually and legally, the colonial polity was always a dual state, with different rules applying for Europeans and for Africans. Within their own spheres, commercial and civil transactions were governed by different laws: “modern” law in modern courts for Europeans, “customary” law applied through “native courts” for Africans’ (Stephen Humphreys, *Theatre of the Rule of Law. Transnational*

the distinction between state and Nazi party). Rather, this dualism describes a single state which appears Janus-faced with regard to the application and validity of law. The 'normative state' (*Normenstaat*) more or less abides by legal rules and ordinary procedures, while the 'prerogative state' (*Maßnahmenstaat*) foresees

no legal regulation of the official bodies. The political sphere in the Third Reich is governed neither by objective nor by subjective law, neither by legal guarantees nor jurisdictional qualifications. There are no legal rules governing the political sphere. It is regulated by arbitrary measures (*Maßnahmen*), in which the dominant officials exercise their discretionary prerogatives.⁴⁹

This bifurcation can, in Weberian terms, be translated into the predominance of formal rationality in the technical or normative state as well as the prevalence of substantive (ir)rationality or (in)justice in the prerogative state.⁵⁰ In Max Weber's account of economic action, 'formal rationality' refers to the calculation of means and procedures to reach specific ends, while 'substantial rationality' reflects on the value of certain goals or outcomes. According to Weber, a maximum of formal rationality in the economic domain is based on certain substantive conditions, including a reliable legal system. From this, the 'complete calculability of the functioning of public administration and the legal order and reliable purely formal guarantee of all contracts by the political authority' can be (ideal-typically) derived.⁵¹ This calculability demands a sufficient degree of formal rationality of law itself, which Weber sees in the elements of generalisation, systematicity and abstractness.⁵²

Unlike some critics have suggested,⁵³ this duality of rationality forms embedded in the respective 'halves' of the dual state should not be interpreted as a spatial separation. Fraenkel has occasionally abetted such a misconception by speaking – in the German edition – of the political 'sector'.⁵⁴ Moreover, a passing glance at the authorities mainly associated with the respective 'states', namely the courts and administrative agencies upholding the normative state on the one hand and the state police, Gestapo, agents of the National Socialist German Workers' Party (NSDAP) and special courts on the other, might lead one to conclude that such a dual operation literally occurs 'side by side'. Fraenkel, however, distinctly regards the normative and prerogative states as 'competing systems of government' (*konkurrierende Herrschaftssysteme*),⁵⁵ animated by different legal principles:⁵⁶ lawful procedures, first, and political expediency, second.

Legal Intervention in Theory and Practice (CUP 2010) 114). To be fair, Humphreys, while using the term 'dual state' usually associated with Fraenkel's work, does not refer to its conceptual subtleties. What Humphreys describes in this brief passage, is a typical case of legal pluralism that does not correspond with a split into a normative and a prerogative state. To be sure, there is ample evidence that Africans were indeed in many cases subjected to 'exceptional' arbitrary measures or even excesses of violence and in this sense prerogative power (see Margaret Kohn and Keally McBride, *Political Theories of Decolonization. Postcolonialism and the Problem of Foundations* (OUP 2011) 77–97; Olivier Le Cour Grandmaison, *Coloniser. Exterminer. Sur la guerre et l'État colonial* (Fayard 2005)). Nevertheless, it is important to distinguish between different systems of law and systems or modes of government. Unfortunately, Fraenkel largely misses to engage with the Nuremberg Laws in his analysis.

⁴⁹Fraenkel, *The Dual State* (n 3) 3.

⁵⁰*Ibid* 46–49; see Fraenkel, 'Das Dritte Reich als Doppelstaat' (n 47) 509.

⁵¹Max Weber, *Economy and Society. An Outline of Interpretive Society* (Guenther Roth and Claus Wittich eds, Ephraim Fischhoff and others tr, University of California Press 1978) 162.

⁵²*Ibid* 654–56.

⁵³Breuer (n 20) 47.

⁵⁴Ernst Fraenkel, *Der Doppelstaat* (3rd ed, CEP Europäische Verlagsanstalt 2012) 55. The English version speaks of the 'political sphere' (Fraenkel, *The Dual State* (n 3) 3).

⁵⁵Fraenkel, *Der Doppelstaat* (n 54) 101.

While the exercise of public power is characterised by the ‘organizational unification of leadership’,⁵⁷ which leads to the suppression of all elements of the separation of powers, such unification does not entail – in opposition to some theories of totalitarianism – the total political pervasion of society in a quantitative sense.⁵⁸ Qualitatively, however, there is a total element in the political dimension, as it constitutes ‘an omnicompetent sphere independent of all legal regulation’.⁵⁹ Every legal case, and every action by a citizen or group, can potentially be viewed a political case to be solved by the prerogative state. In this regard, the normative state is – unlike the situation under the rule of law or the limiting effects of constitutionalism in a substantial sense (what Karl Loewenstein termed the existence of a ‘normative constitution’⁶⁰) – entirely dependent on questions of political expediency. Hence, the two systems of government are not competing at eye level as the Nazi dictatorship constitutes sovereign agency and the state of exception in permanence.⁶¹

Due to this sovereign power of declaring cases political, the dual state is a highly dynamic construction without clear borders. Fraenkel repeatedly describes the continuous expansion of the prerogative state, which eventually threatens the existence of a normative state. However, it would be misconceived to regard each instance of this expansion as an imposition of the sovereign’s will; in particular, Fraenkel’s description provides no license to interpret the shrinking of the normative state as a transition in which the ‘good old’ (pre-Nazi) bureaucracy and judiciary are taken over by NSDAP agents.⁶² Indeed, the operations of the normative state are often directly politically overturned (e.g. by the police arbitrarily arresting people after their acquittal by a court, or confiscating goods without legal base or without respecting due process). In these cases, the violence and outright lawlessness of measures come to the fore. Furthermore, the normative state can be severely restricted when a court’s jurisdiction is curtailed by new legislation (like the law empowering and granting structural impunity to the Gestapo) or new special courts, such as the infamous *Volksgesichtshof*, are established. Here, the prerogative state expands by using means that do not officially defy the legal form. In other instances, however, the normative state’s courts, in an act of anticipatory obedience, deliberately forfeit their judicial power by bowing, sometimes even permanently, to political authority.⁶³ At the same time, Fraenkel cites numerous cases in which the normative state’s administrative courts, even as late as the end of 1938, defend themselves against transgressive attempts by the prerogative state.⁶⁴ This is a reminder that the fragile boundary

⁵⁶Fraenkel, ‘Das Dritte Reich als Doppelstaat’ (n 47) 509.

⁵⁷Fraenkel, *The Dual State* (n 3) 154.

⁵⁸Bernhard Blanke, ‘Der deutsche Faschismus als Doppelstaat’ (1975) 8 *Kritische Justiz* 221, 229. See Fraenkel’s distinction between a qualitative and a quantitative dimension of totalitarianism, by which he follows analytically Carl Schmitt (Fraenkel, *The Dual State* (n 3) 60–61).

⁵⁹Fraenkel, *The Dual State* (n 3) 68–69.

⁶⁰This is a living constitution that effectively regulates the political process and is embedded in a developed legal consciousness, i.e. more or less ‘faithfully observed by all concerned’ (Karl Loewenstein, *Political Power and the Governmental Process* (University of Chicago Press 1965) 148).

⁶¹Fraenkel, *The Dual State* (n 3) 57.

⁶²Horst Dreier, ‘Nachwort: Was ist doppelt am “Doppelstaat”? Zu Rezeption und Bedeutung der klassischen Studie von Ernst Fraenkel’ in Fraenkel, *Der Doppelstaat* (n 54), 274, 280.

⁶³*Ibid* 284–95.

⁶⁴Fraenkel, *The Dual State* (n 3) 58–59. Such occasional resistance notwithstanding, Michael Stolleis concludes in his history of Nazi jurisprudence that ‘because of an inbred respect for power, administrative judges – in the history of German law more like servants of the state than bearers of a third power legitimized by popular sovereignty – gave up their jurisdictions faster than was necessary’ (Michael Stolleis, *The Law under the Swastika: Studies on Legal History in Nazi Germany* (Thomas Dunlap tr, The University of Chicago Press 1998) 135).

between the ‘two halves’ of the dual state is not only contested from one side, but that law and politics are negotiated orders in which diverse (and often severely unequal) actors struggle for power and meaning. Moreover, this occasional, albeit cautious, resistance by courts is what prompted Fraenkel to develop the idea of the dual state in the first place.

Some courts’ refusal to acquiesce in a further recess of the normative state reveals that there remained at least some ‘cultural resonance’ of the idea of obligatory and reliable legal rules and procedures.⁶⁵ While Meierhenrich has tried to demonstrate that traces of the German idea of *Rechtsstaatlichkeit* survived in the first years of the Nazis’ theorisation of law,⁶⁶ Fraenkel emphasises the instrumental function of the normative state for Nazi rule. According to Werner Best, the Gestapo’s legal counsel, the ‘constructive forces’ of the German *Volk* were to be granted legal protection from the normative state. In order to ensure the efficiency of their constructive effort, predictable and calculable state action was crucial. It remained, however, a sovereign decision to deny any person the status of ‘constructive force’ at any time.⁶⁷

In Fraenkel’s view, no modern political order can exist by ruling entirely arbitrarily.⁶⁸ Thus, the validity of law and its function to stabilise normative expectations (Luhmann) is vital. In *The Dual State*, Fraenkel mainly concentrates on legal certainty in the economic domain, which is necessary to attract private entrepreneurs.⁶⁹ The ‘socialist’ elements in Nazi ideology were meant to construct an economic system that served the German *Volk*, but even the four-year-plans did not imply the bureaucratic management of the economy. Private entrepreneurship was therefore not only endorsed for reasons of efficiency, but it was also normatively held ‘in high regard. Private property was considered a precondition to developing the creativity of members of the German race in the best interest of the people’.⁷⁰ Moreover, the idea of economic competition suited the social Darwinist ideology of ‘natural selection’.⁷¹

Still a democratic socialist while writing the book, Fraenkel sees the normative state’s real *raison d’être* in this economic function.⁷² *The Dual State* ends with the diagnosis of a ‘symbiosis’ between National Socialism and a form of capitalism, which embraces the substantial irrationality of the Nazi system as long as ‘the necessary pre-requisites for its technically rational order are preserved’;⁷³ Weberian in terminology, this verdict also bears obvious similarities to Max Horkheimer’s critique of instrumental reason in the 1930s.⁷⁴

The question of the entrepreneurs’ responsibility aside, the aim of smoothening capitalism presents practical barriers to a potentially totalitarian system:

⁶⁵Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 246.

⁶⁶*ibid* 95–140.

⁶⁷Fraenkel, *The Dual State* (n 3) 62.

⁶⁸Fraenkel, ‘Die Prinzipien des Rechtsstaates’ (n 26) 359.

⁶⁹Fraenkel, *The Dual State* (n 3) 61–64.

⁷⁰Christoph Buchheim and Jonas Scherner, ‘The Role of Private Property in the Nazi Economy: The Case of Industry’ (2006) 66 *The Journal of Economic History* 390, 408.

⁷¹*ibid* 409.

⁷²Fraenkel, *The Dual State* (n 3) 72. In his previous 1937 article, he even declares the dual state ‘the ideological superstructure above a capitalism living on politics’ (my translation: ‘Der Doppelstaat ist der ideologische Überbau über einen Kapitalismus, der von der Politik lebt, weil er ohne die Politik nicht mehr zu existieren vermag’ (Fraenkel, ‘Das Dritte Reich als Doppelstaat’ (n 47) 518)).

⁷³Fraenkel, *The Dual State* (n 3) 208.

⁷⁴See Max Horkheimer, ‘Traditional and Critical Theory’ in Horkheimer, *Critical Theory. Selected Essays* (Matthew J. O’Connell and others tr, Continuum 2002) 188.

The legal institutions essential to private capitalism, such as freedom of enterprise, sanctity of contracts, private property, the right of the entrepreneur to control labor, regulation of unfair competition, regulation of patent, trade-mark rights, etc., legal protection for interest agreements, property and transfer for purposes of security, still exist in Germany.⁷⁵

This opportunistic defence of ‘formal rationality’ by Nazi rulers led to the schizophrenic situation that Jews – who, in Nazi ideology, are the extreme opposite of the ‘constructive forces’ of the people and thus a mere object of the prerogative state – were initially, at least occasionally, put under the umbrella of the normative state until ‘the moment it was resolved to extirpate the Jews from economic life’.⁷⁶ This would soon culminate into placing them ‘hors la loi’.⁷⁷

This reconstruction of the methodical and categorical framework of *The Dual State* and other important writings by Fraenkel on the rule of law was not meant to shed new light on the interpretation of Nazi law – or decide if Fraenkel’s depiction lives up to every insight by posterior historical scholarship on this topic. The purpose, however, was to endorse the basic thesis of the duality of a strongly authoritarian system before it becomes totalitarian, and to underline how this duality was motivated and put into practice.

Over the last decade, several scholars have sought the dual state framework to analyse contemporary authoritarian structures and developments. Hence, the remainder of this article will examine how and to what extent the dual state concept can contribute to the debate on authoritarianism – and if it can even be successfully applied to structures beyond the state. This search for structural analogies, to be sure, has an analytical motive and does not imply the potential equation of National Socialism with other forms of dictatorship.

3. Dual states in the contemporary world: examples and conceptual premises

3.1. Dual states in authoritarian and hybrid regimes: methodological and typological implications

Despite a widespread ignorance of the depth and details of Fraenkel’s ground-breaking observations, the concept of dual state⁷⁸ has been applied to other past and present authoritarian or hybrid states,⁷⁹ most often by referring only loosely to Fraenkel’s concrete insights. Kanishka Jayasuriya has, for example, identified Singapore and Hong Kong as

⁷⁵Fraenkel, *The Dual State* (n 3) 73.

⁷⁶ibid 89.

⁷⁷ibid 96.

⁷⁸It should be noted that Hans Morgenthau coined a partly different use of the term ‘dual state’, which is taken up in critical security studies (see Eric Wilson (ed), *The Dual State. Parapolitics, Carl Schmitt and the National Security Complex* (Ashgate 2012)). In Morgenthau’s definition, it is ‘characteristic of the “dual state” that in it, as a matter of law, the power of making decisions remains with the authorities charged by law with making them while, as a matter of fact, by virtue of their power over life and death, the agents of the secret police – co-ordinated to, but independent from, the official makers of decision – at the very least exert an effective veto over the decisions’ (Hans Morgenthau, *Politics in the Twentieth Century: The Decline of Democratic Politics* (University of Chicago Press 1962) 400). Thus, in contrast to Fraenkel, Morgenthau directs the sole focus of attention to the hollowing out of the rule of law by the prerogative power of a hidden security apparatus. It is astonishing that Morgenthau does not even reference Fraenkel, as both belonged to the academic circle of Hugo Sinzheimer, a leading German scholar in the field of labour and social law (see Ladwig-Winters (n 10) 51).

⁷⁹On the latter category, see Matthijs Bogaards, ‘How to Classify Hybrid Regimes? Defective Democracy and Electoral Authoritarianism’ (2009) 16 *Democratization* 399.

dual states⁸⁰ in which a normative sector rules commercial and economic life and an executive prerogative power dominates the political realm. With regard to Russia, Kathryn Hendley characterises its legal order ‘as a dual system under which mundane cases are handled in accordance with the prevailing law, but cases that attract the attention of those in power can be manipulated to serve their interests’⁸¹ – a practice of political interference which she tellingly describes as ‘telephone law’.⁸² Further authors also interpret the Russian case in this vein,⁸³ including Robert Sharlet, who ascribed a dual character to Soviet legal culture decades ago.⁸⁴ All of these accounts thereby challenge the conventional wisdom of widespread ‘legal nihilism’ in Russian culture. Meierhenrich has applied Fraenkel’s categories to South Africa under Apartheid,⁸⁵ and Eva Pils has described tensions within the Chinese project of establishing a ‘modern’ legal system, including some human and civil rights provisions as well as party officials’ firm grip on the regime’s declared enemies – especially dissidents and human rights lawyers.⁸⁶

Instead of engaging in a deeper analysis of these political orders, I view these obviously dissimilar cases as an opportunity to refine the concept of the dual state and reflect on the conditions of its applicability, which should facilitate further conceptual and empirical undertakings. Before discussing the analytical value of Fraenkel’s observations for contemporary political developments, methodological soundness demands that one first look at the scope Fraenkel himself ascribes to his central concept. In the preface to the first 1941 American edition, he limits the range of his findings by declaring his ambition to ‘describe the basic principles of the legal and constitutional developments of the Third Reich’.⁸⁷ While the subtitle of this original edition of *The Dual State* promises – unlike the German edition three decades later – to make a ‘contribution to the theory of dictatorship’, Fraenkel refrains from drawing typological conclusions for the field of dictatorial regimes, not least due to an obvious lack of sources. Thus, the dual state thesis is initially firmly embedded in the concrete historical context surrounding the emergence and development of Nazi Germany. More precisely, it is difficult to regard the Nazi ideology of the *Volksgemeinschaft* and Fraenkel’s central thesis that the ‘Dual State is [...] the necessary

⁸⁰Kanishka Jayasuriya, ‘The Exception Becomes the Norm: Law and Regimes of Exception in East Asia’ (2001) 2 Asian-Pacific Law & Policy Journal 109, 121. Cora Chan has recently confirmed that a ‘bifurcation has emerged whereby Hong Kong’s usual liberal constitutionalist principles govern when China’s interests are not at stake, but socialist principles prevail when they are, resembling the dual state of the Third Reich and other bifurcated legal orders observed in authoritarian states. The power to determine whether a matter should be governed by one rather than another system is vested in Beijing’ (Cora Chan, ‘Thirty Years from Tiananmen: China, Hong Kong, and the Ongoing Experiment to Preserve Liberal Values in an Authoritarian State’ (2019) 17 International Journal of Constitutional Law 439, 446). Moreover, she sees a recent trend to anticipatory obedience by the courts by deliberately applying Chinese law that is at odds with Hong Kong’s Basic Law (see *ibid* 448).

⁸¹Kathryn Hendley, ‘Assessing the Rule of Law in Russia’ (2006) 14 Cardozo Journal of International and Comparative Law 347, 351.

⁸²Kathryn Hendley, ‘“Telephone Law” and the “Rule of Law”: The Russian Case’ (2009) 1 Hague Journal on the Rule of Law 241.

⁸³See Richard Sakwa, ‘The Dual State in Russia’ (2010) 26 Post-Soviet Affairs 185; Alexei Trochev and Peter H. Solomon Jr., ‘Authoritarian Constitutionalism in Putin’s Russia: A Pragmatic Constitutional Court in a Dual State’ (2018) 51 Communist and Post-Communist Studies 201.

⁸⁴See Robert Sharlet, ‘Stalinism and Soviet Legal Culture’ in Robert C. Tucker (ed), *Stalinism. Essays in Historical Interpretation* (Norton & Company 1977) 155.

⁸⁵See Sven Meierhenrich, *The Legacies of Law. Long-Run Consequences of Legal Development in South Africa, 1652–2000* (CUP 2008).

⁸⁶See Eva Pils, *China’s Human Rights Lawyers: Advocacy and Resistance* (Routledge 2015) ch 6.

⁸⁷Fraenkel, *The Dual State* (n 3) ix.

consequence of a certain stage of crisis for the directing elements of capitalistic society'⁸⁸ as accidental to his analysis.⁸⁹

While this methodological caveat must not be neglected, it was Fraenkel himself who suggested a broader application of the dual state concept after the War. Leaving his (heterodox) socialist identity behind and converting to a liberal form of pluralism, his conceptual work occasionally bears a touch of the Cold War and the imprint of the politics of re-education. This is especially apparent when comparing Western democracies to dictatorships in the East – a clash of political systems he experiences first-hand in the divided city of Berlin, where he would return as an American citizen in 1951.⁹⁰ It is in this environment that he picks up the concept of the dual state for an analysis of the present; and he does this at a time when large parts of his German audience inevitably ignored his analysis of Nazi law, as the first German edition was not released until one year before his death in 1974.

Thus, his 'updated' use of the term 'dual state' appears in a specific light. In a radio speech in 1953 about the principles of the *Rechtsstaat*, he says:

The alternative is not: here the rule of law, there arbitrariness. It is rather: inviolable rule of law or rule of law with reservation. [...] As the validity of law in a *Rechtsstaat* is inviolable, the *Rechtsstaat* constitutes a unitary governmental system; as law in a dictatorship is only conditionally in force, every dictatorship constitutes a dual state.⁹¹

Therefore, Fraenkel himself licences the endeavour to use the concept of the dual state beyond the context of its original conception. The downside of this remark is evident: by equating 'dictatorship' with 'dual state', some potential insights of his masterful analysis of Nazi law get lost. This simplification was certainly motivated by his work as a public intellectual and by the impetus to tackle the widespread stereotypical identification of dictatorships with sheer despotism and lawlessness – in turn leaving no doubts about the normative superiority of established constitutional democracies. The price for this approach, however, was a lack of analytical sharpness with regard to different forms of autocratic government. Hence, a balance must now be struck between confining the tool of the dual state to the genesis and practice of Nazi law, on the one hand, and subsuming all kinds of dictatorial, including totalitarian,⁹² regimes under it, on the other. Moreover,

⁸⁸ibid xxiv.

⁸⁹Later attempts by legal historians to interpret the legal system of the German Democratic Republic as a 'dual state' (see Heidrun Budde, *Willkür! Die Schattenseite der DDR* (I. Koch 2002) 13–16; Michael Stolleis, *Sozialistische Gesetzlichkeit. Staats- und Verwaltungsrechtswissenschaft in der DDR* (C. H. Beck 2009) 38–39), have, for example, been accused of such insensitivity (see Jörg Arnold, 'Review of Michael Stolleis, *Sozialistische Gesetzlichkeit*' (2010) 43 *Kritische Justiz* 482, 486).

⁹⁰Ladwig-Winters (n 10) 246–56.

⁹¹My translation: 'Die Alternative lautet nicht: hie Herrschaft des Gesetzes, hie Willkür. Die Alternative lautet vielmehr: unverbrüchliche Herrschaft des Rechts oder Herrschaft des Rechts unter Vorbehalt. [...] Weil im Rechtsstaat das Recht unverbrüchlich gilt, stellt der Rechtsstaat ein einheitliches Herrschaftssystem dar; weil in der Diktatur das Recht nur unter Vorbehalt gilt, stellt eine jede Diktatur einen Doppelstaat dar' (Fraenkel, 'Die Prinzipien des Rechtsstaates' (n 26) 359).

⁹²Unfortunately, Fraenkel does not coherently distinguish between totalitarian regimes and other forms of dictatorship. In *The Dual State*, he explains his reluctance to use the term 'totalitarian state' due to 'its complex connotations' (Fraenkel, *The Dual State* (n 3) 60) and then states that a political order based on the institution of private property 'cannot be called a totalitarian state in the broader sense' (ibid, 61). On the other hand, he clearly sees the continuous shrinking of the normative state and the tendency to transform the Reichstag Fire Decree into a 'tool for realizing a fascist totalitarianism' ('Kennzeichnend für die jüngste Entwicklung ist die Tendenz, die für die Errichtung einer nationalistischen Diktatur geplante und erlassene Verordnung vom 28. Februar 1933 in ein Werkzeug zwecks Verwirklichung eines faschistischen Totalitarismus zu verwandeln' (Fraenkel, *Der Doppelstaat* (n 54) 83); this passage does not appear in this form in the

while there is solid reasoning, which will subsequently be discussed, to strike certain dictatorial regime types of the list of dual states, it might be rewarding to ask for the dualistic legal structures of hybrid or even formally democratic orders to get a better grasp on contemporary authoritarianism and the dynamics of legalisation and de-legalisation.

This approach requires some qualification – and, in particular, a more thorough discussion about the normative state’s attributes. In order to evaluate the extent to which Fraenkel’s equation of dictatorship with a dual state structure seems pertinent, it is useful to first examine the law in totalitarian systems, which are characterised by their monistic structure of government, absent of any checks and balances and dominated by an all-encompassing ideology and the frequent exercise of terror.⁹³ Stalinist terror certainly came close to eradicating law, which was ideologically seconded by the leading Soviet legal scholar, Evgeny Pashukanis, who saw law solely as a bourgeois instrument that impedes a classless society. Under such dictatorial rule, which relies on pure voluntarism, decisionism and terror, there is no noteworthy legal element and hence no dual state. But as Sharlet has shown, Stalin initiated a legal counter-revolution in the late 1930s to consolidate his power and enhance his project of social engineering, which ultimately resulted in law becoming an instrument of power alongside terror. Thus, when Sharlet explicitly describes the post-Stalinist Soviet Union as a dual state – in which many questions and conflicts of everyday life were legally resolved without practical interference by political prerogative – he ironically sees Stalin, who authorised some of the greatest waves of terror and political show trials in world history, as an initiator of this recourse to law.

China is another example worthy of discussion: At first glance, China under the Maoist Cultural Revolution is an obvious case in which virtually all legal rules were deliberately annihilated by voluntarist terror. Hence, the dual state framework does not seem to fit here. Xu Lizhi, however, has recently challenged the conventional view that the Cultural Revolution brought about a kind of unprecedented legal nihilism. One of his arguments is that, although the legal order suffered ‘severe devastation’, this terrorist phase did not result in absolute lawlessness.⁹⁴ More important is his claim that even before – in fact, since the founding of the People’s Republic of China in 1949 – there was only a very weakly established legal order,⁹⁵ and certainly none which even came close to the ‘formal rationality’ Fraenkel attributes to the normative state. Consequently, Meierhenrich is right when he asserts that ‘if law was never seriously embedded in a given society, it is unlikely that the dual-state-concept will be of much use for making sense of the logic of authoritarianism there’.⁹⁶ In other words, where law is technically present in a society, but plays only a very limited role in

English edition). In his post-war writings, the label ‘totalitarianism’ is broadly attributed to National Socialism and especially to the Soviet system (Fraenkel, ‘Die Prinzipien des Rechtsstaates’ (n 26) 362–64); conceptually, he uses the term in contrast to a pluralist democracy (see Ernst Fraenkel, ‘Das Verhältnis von Recht und Politik in Demokratie und Diktatur’ [1965] in Fraenkel, *Gesammelte Schriften* vol 5 (n 26); ‘Selbstentfaltung und Wertverwirklichung in der demokratischen Gesellschaft’ [1954] in *ibid* 374, 378–82), which shows a neglect for non-totalitarian autocratic regimes – even though he underlines the ‘ideal-typical’ framework of an ‘autonomous-heterogeneous-pluralistic *Rechtsstaat*’ contrasted with a ‘heteronomous-homogenous-totalitarian dictatorship’ (Fraenkel, *Deutschland und die westlichen Demokratien* (n 45) 280).

⁹³ See Sharlet (n 84) 155–57.

⁹⁴ Xu Lizhi, ‘Beyond “Destruction” and “Lawlessness”. The Legal System During the Cultural Revolution’ in Daniel Leese and Puck Engman (eds), *Victims, Perpetrators, and the Role of Law in Maoist China. A Case-Study Approach* (de Gruyter 2018) 25, 41.

⁹⁵ *ibid* 40.

⁹⁶ Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 247.

stabilising normative expectations and influencing social action (for example, because of powerful alternative normative orders of social interaction and conflict-resolution), we should not speak of the necessary socio-cultural embedding of the normative state Fraenkel describes in his analysis of Nazi law.

This observation is not only relevant for understanding totalitarian regimes. Peter Waldmann depicts several Latin American polities as ‘anomic states’ in which state law was and often still is not predominantly accepted by the population or by the political and administrative agents.⁹⁷ To be sure, this lack of legal abidance itself does not constitute anomic effects – alternative norm systems, such as corruption and neopatrimonialism, can principally express a culture of illegality and impunity that is accompanied by relatively stable normative expectations about the likely consequences of a certain action. But Waldmann correctly points out that the existence of written law does not reveal much about its capacity of orientation, or about ‘law in practice’; hence, where such cases exist in dictatorships or other regime types, we should not speak of a dual state. For example, both Chile and Argentina were governed by brutal dictators in the 1970s and 1980s. While military leaders in Chile, traditionally a very ‘legalistic culture’,⁹⁸ tried to give their dictatorship a legal form,⁹⁹ the Argentinian junta showed not even a hypocritical respect of the law, a neglect that went so far as disposing their opponents, thereby producing tens of thousands of *desaparecidos*. The comprehensive apparatus of military tribunals and special legal procedures was hardly used for this terrorist practice, thus constituting a ‘second-order deviance’ with regard to law.¹⁰⁰

As a consequence, it would be misleading to ignore the condition of states in which legal certainty does not exist due to the predominance of alternative norm systems and/or lack of capacity or willingness to implement the state’s legal rules.¹⁰¹ The existence of the normative state is therefore not exclusively dependent on the ‘will’ of the sovereign.

To draw an intermediate conclusion, the dual state concept is *not* an illuminating and appropriate description of political regimes when:

- the prerogative state rules with such an amount of arbitrariness and terror that law is either completely annihilated or rendered virtually insignificant;
- there is a legal order but no socio-cultural embedding of law (lack of validity and the capacity to shape normative expectations);
- there is a legal order but a lack of state capacity to implement it sufficiently.¹⁰²

⁹⁷See Peter Waldmann, *Der anomische Staat. Über Recht, öffentliche Sicherheit und Alltag in Lateinamerika* (Leske+Budrich 2002).

⁹⁸Peter H. Solomon Jr., ‘Review: Courts and Judges in Authoritarian Regimes’ (2007) 60 *World Politics* 122, 130.

⁹⁹Augusto Pinochet was eventually even removed by means of a legal instrument (a referendum).

¹⁰⁰Peter Waldmann, ‘Die Nachwirkungen der Militärdiktatur auf den Rechtsstaat in Lateinamerika am Beispiel Argentiniens und Chiles’ in Rolf Kappel, Hans Werner Tobler and Peter Waldmann (eds), *Rechtsstaatlichkeit im Zeitalter der Globalisierung* (Rombach Verlag 2005), 203, 221–23.

¹⁰¹See Hans-Joachim Lauth and Jenniver Sehring, ‘Putting Deficient *Rechtsstaat* on the Research Agenda: Reflections on Diminished Subtypes’ (2009) 8 *Comparative Sociology* 165.

¹⁰²This is not to maintain the position that, from a sociological point of view, there is no possibility of an effective legal order independent of state order, which is at the heart of the legal pluralism debate. But even if it might be possible to dissociate the dual state thesis from the framework of the nation-state (by underlining that the duality in question is constituted not by state halves, but by competing legal *principles*, which could be observed theoretically in any legal order irrespective of its scope and range), this third condition would hold in the respectively altered sense: that there must not be a far-reaching lack of a polity’s or a community’s capacity to implement a legal order, as otherwise the dual state concept is hardly justified.

In all these cases, there is no noteworthy legal certainty. Moreover, as can easily be seen, this deficiency only partly overlaps with the normative state's lack of formal rationality, which Fraenkel rightfully highlights. Inspired by a Weberian mindset, his analysis undoubtedly betrays a preoccupation with a Western model of statehood and categories of rationality that a comparative cultural analysis of law could put into perspective.¹⁰³ Nevertheless, the dual state thesis is based on the presupposition of a 'rational core within an irrational shell', which should not be simply glanced over.

There is, at least potentially, a fourth condition for the coherent application of the dual state concept. At the bare minimum, this criterion, namely the normative state's capacity to limit the prerogative state's transgressive power, helps draw an important line between different types of dual states. As Fraenkel speaks about legal politics in a dictatorship, the normative state's limitation function is not a constitutional guarantee, as prerogative power is exerted principally in a sovereign fashion. Throughout his work, he is committed to the crucial position that the normative state is different from a *Rechtsstaat* because the former always operates in the shadow of the prerogative state. Furthermore, he leaves no doubt that the Nazis' reasoning behind basing their power partly on the normative state is predominantly instrumental. Thus, more or less assuring the predictability of legal rules and procedures in the economic domain was not considered an intrinsically valuable, but effective means of profiting from the smoothing of (however politically supervised) capitalism. Similarly, Stalin's recourse to law alongside the 'Great Terror' instrumentally served his project of social technology. In the contemporary interconnected world, where constitutionalism is an idea that is hard to reject outright, another instrumental motivation for a recourse to legality is certainly to enhance a regime's international reputation and legitimation.¹⁰⁴

As far as this strategy provides efficient legal certainty, a minimal condition for the existence of a normative state is fulfilled. Meierhenrich, however, advances the idea (as a 'friendly amendment' to Fraenkel's conceptual framework) that legalism should be developed to such a degree that it, at least occasionally, also serves opponents of the respective authoritarian regime. Fraenkel's depiction of Nazi law certainly shows that declared enemies of the people cannot hope for legal protection, at least not for long. Nevertheless, the status and reach of the normative state could be observed by an evaluation of 'whether the available legal norms and institutions in that polity are sufficiently meaningful for dissenters, insurgents, or other opponents of dictatorships to take them seriously as swords or shields'.¹⁰⁵ Fraenkel, who fought and advocated for the rights of such people until fleeing Germany in 1938, had little illusions about the protective function of law under the Nazis. Conceptually, however, he insisted that the normative state possess a certain robustness not only in clearly technical private law cases, but also in court cases which featured an underlying political dimension:

It would not be legitimate to speak of a Normative State if, in cases of conflict (*in politisch relevanten Grenzfällen*), the courts ignored the existing law in favor of general principles of National-Socialist origin. The Normative State would not exist if, even in cases where

¹⁰³See Jan Christoph Suntrup, *Umkämpftes Recht. Zur mehrdimensionalen Analyse rechtskultureller Konflikte durch die politische Kulturforschung* (Klostermann 2018).

¹⁰⁴See Solomon Jr. (n 98) 132; Kim Lane Scheppele, 'Autocratic Legalism' (2018) 85 *The University of Chicago Law Review* 545, 563.

¹⁰⁵Meierhenrich, *The Remnants of the Rechtsstaat* (n 1) 246.

the political police do not intervene, the legal authority had to contend with this (...) reservation.¹⁰⁶

While this self-constraining function of Nazi law should not be overestimated, this criterion should be considered in the analysis of other dual states to get a better idea of their degree of authoritarianism. In some constellations, courts are clearly just a useful tool for authoritarian leaders, but in other settings, certain courts that were established for instrumental reasons are more willing to defend legal rules and principles against transgression by the prerogative state.¹⁰⁷ Tamir Moustafa describes such an incident in Egypt, where the Supreme Constitutional Court was established in 1979 for the primary purpose of reassuring potential foreign investors. Eventually, however, this would develop into a 'dual-use institution',¹⁰⁸ which also served opponents of the regime before becoming, in return, tamed by the political authorities. These struggles within dual states are a promising research field for comparative political analysis.

A last remark concerns the analysis of growing authoritarianism in non-dictatorial regimes. The rise of populism, the ascent of parties and movements from the radical right, the neo-Orwellian newspeak of 'alternative facts' and other similar phenomena have led to considerable fear (and sometimes barely disguised celebration) of a decline of democracy, which has animated a new academic interest in authoritarianism. Contending that the dual state framework can be generally applied to this unsettling backlash in more or less established constitutional democracies in an illuminating way, however, would be ill-advised, as it would not amount to much more than a vague label rather than analytical tool. In fact, in politics now ruled by illiberal populist leaders, such as Poland or Hungary, it might be possible to identify a bifurcation of the legal system; and, in a further step, the system itself could be divided into parts where the existing order is left relatively untouched in its validity and other politically virulent domains where legal rules and procedures are undermined. The differences to Fraenkel's analysis, however, must not be neglected. First of all, it cannot be forgotten that Fraenkel analysed a soon-to-be totalitarian system, infused by an inhuman ideology and based on increasing degrees of terror. Both significant levels of terror and an all-encompassing and coherent ideology (beyond the rejection of pluralism, equality and 'political correctness') are absent in current democracies on the path to authoritarianism. Furthermore, today's democracies, while taking an illiberal turn, are not simply overthrowing a constitutional order like the Nazis did. Instead of sovereignly deciding when and where they abide by the law, leaders in illiberal democracies are usually forced to cope with the legal order at hand – which cannot simply be ignored due to lack of capacity, fear of a damaged reputation or international or supranational constraints. Hence, when sovereignty is limited, the capacity for decisionism is, too; the prerogative state will not be fully-fledged, though it may eventually be. As a consequence, a common strategy is to make use of 'auto-cratic legalism',¹⁰⁹ namely a change of the constitutional order and political system (with regard to checks and balances, minority rights, pluralism etc.) by officially legal means.

¹⁰⁶Fraenkel, *The Dual State* (n 3) 74.

¹⁰⁷See Solomon Jr. (n 98); Gretchen Helmke and Frances Rosenbluth, 'Regimes and the Rule of Law: Judicial Independence in Comparative Perspective' (2009) 12 *Annual Review of Political Science*, 345.

¹⁰⁸Tamir Moustafa, *The Struggle for Constitutional Power: Law, Politics, and Economic Development in Egypt* (CUP 2007), 10.

¹⁰⁹See Scheppele (n 104).

I do not want to contend that Fraenkel's study cannot tell us anything about these developments: As we have seen, the duality of the Nazi state did not materialise in a neat separation of special and ordinary courts and agents exclusively representing one half of the dual state (such as the secret police, on the one hand, and administrative judges, on the other). On the contrary, Fraenkel tried to understand principles of government and the use of the law, which made him attentive to operations by the prerogative state that were not openly illegal, but rather 'enacted in statute form',¹¹⁰ – and thus resembled the strategy of autocratic legalism. Generally, however, the prerogative state in Nazi Germany was far less subjected to the aim of letting unlawful measures appear legal.

In sum, historical and contemporary authoritarianism is a promising research field to which the dual state concept can be applied – as long as it is done in more than an allusive way. In addition, there are other research domains that can profit from this concept. Security politics, which will be discussed next, is one of them.

3.2. Democracies and new security measures – enemy criminal law in theory and practice

While the discussed turn to autocratic legalism can be read as a sign that the ideas of legality and constitutionalism cannot be openly rejected as easily today as during the fascist regimes of the 1930s, the twenty-first century has brought about severe doubts about the extent to which governments, even democratic ones, practically pay respect to legal rules. Eric Posner and Adrian Vermeule have evoked much protest by provocatively stating that 'we live in a regime of executive-centred government, in an age after the separation of powers, and the legally constrained executive is now a historical curiosity'.¹¹¹ This broad thesis was voiced in the American context, but other authors like Tom Poole have more generally feared the dawn of a new age of prerogative caused by new imperatives of public security.

From the attacks of 9/11 to the massacres in France since 2015, the instrument of the state of exception or emergency has frequently been used for security reasons and has attracted extensive scholarly attention. Most commentators agree that today's declarations of the state of exception do not resemble the Roman ideal of mandating that a commissary dictator be allowed to resort to measures beyond legal provisions to restore public order for a fixed period. Giorgio Agamben is one of the most prominent thinkers who have questioned that such a clear distinction between 'normal' and 'exceptional' times and temporary and proportionate 'measures' and permanent 'law' – which can be found in Schmitt's account of exceptional powers¹¹² – is not plausible.¹¹³

Fraenkel showed one possibility of an unlimited state of exception by recognising it, as seen above, as the 'constitutional charter of the Third Reich'. But as Kim Lane Scheppele has argued, in the contemporary world, 'creeping emergencies' and extensions of

¹¹⁰Fraenkel, *The Dual State* (n 3) 103.

¹¹¹Eric Posner and Adrian Vermeule, *The Executive Unbound: After the Madisonian Republic* (OUP 2013) 4.

¹¹²See Schmitt (n 14) 213–19. At the same time, Schmitt's decisionist understanding of law undermines this strict conceptual distinction (see William E. Scheuerman, 'States of Emergency' in Jens Meierhenrich and Oliver Simons (eds), *The Oxford Handbook of Carl Schmitt* (OUP 2016) 547, 561).

¹¹³See Giorgio Agamben, *State of Exception* (Kevin Attell tr, The University of Chicago Press 2005) 1–31; Jonathan White, 'Authority after Emergency Rule' (2015) 78 *The Modern Law Review* 585.

prerogative powers that ‘fly under the radar of constitutional alarm’ are a more common occurrence than an explicit declaration of the state of emergency, which indicates the exceptionalism of a situation in a symbolic way as well.¹¹⁴ The transformation of penal law is one stage where this implicit strengthening of the prerogative can be witnessed, resulting – according to Robert van Ooyen – in a gradual shift from the rule of law to a dual state as described by Fraenkel.¹¹⁵ While Fraenkel analysed how Jews and other groups were restricted in their rights, or even put *hors la loi*, actual and potential terrorists are seen today as the new enemies, which has led to a bifurcation of law even in liberal societies with strong constitutional traditions.

On a theoretical level, this shift has been elaborated on in a controversial fashion by German penal lawyer Günther Jakobs. As early as 1985, he saw a duality in the West German state’s penal practices as a reaction to norm violations: While ‘citizen criminal law’ would handle offenders according to ordinary penal rules, ‘enemy criminal law’ would subject possible offenders to preventive measures, confronting them as sources of danger. Originally presented in a mostly analytic way with critical undertones, since the end of the millennium, and especially since the start of the declared ‘War on Terror’, Jakobs has repeatedly expressed the conviction of the ‘impossibility of comprehensive legality’ (*Unmöglichkeit umfassender Rechtllichkeit*).¹¹⁶ Additionally, he has defended a recourse to preventive detention, other means of prevention and surveillance and harsh punishment (up to the possibility of intensified interrogation techniques beyond the scope of the German Code of Criminal Procedure¹¹⁷) as not only legitimate, but also necessary means of exclusion: ‘The state does not speak in this way to its citizens, but in this way it incapacitates its enemies. Should it fail to do this and go under? [...] The degree to which treatment as an enemy must be practiced depends on two factors: citizens’ need for security and the unreliable characters’ potential for violence’.¹¹⁸ Thus, the Schmittian dichotomy of friend and enemy, which in Fraenkel’s account marked the line between the normative and prerogative states,¹¹⁹ reappears in a controversial fashion in legal theory.

In Jakobs’ scheme, the enemy (a term he uses without any reference to Schmitt) is unreliable because he or she offers, contrary to the ideal-typical citizen, ‘no guarantee for future legal behavior’.¹²⁰ Terrorists, as well as certain sexual offenders, habitual criminals and persons involved in organised crime fall into this group. Not only is the status of a citizen in this sense linked to the ‘duty to present himself as somewhat reliable’,¹²¹ but the failure to fulfil this duty also results in a loss of personhood, gradually or totally.

¹¹⁴Kim Lane Scheppelle, ‘Legal and Extralegal Emergencies’ in Keith E. Whittington, R. Daniel Kelemen and Gregory A. Caldeira (eds), *The Oxford Handbook of Law and Politics* (OUP 2008) 165, 174.

¹¹⁵Robert Chr. van Ooyen, ‘Ernst Fraenkel’s Doppelstaat, das neue Feindstrafrecht und die “Rückkehr” von Carl Schmitt’ in Robert Chr. van Ooyen and Martin H. W. Möllers (eds), *(Doppel-)Staat und Gruppeninteressen* (n 45) 259, 262.

¹¹⁶Günther Jakobs, ‘Das Selbstverständnis der Strafrechtswissenschaft vor den Herausforderungen der Gegenwart (Kommentar)’ in Albin Eser, Winfried Hassemer and Björn Burkhardt (eds), *Die deutsche Strafrechtswissenschaft vor der Jahrtausendwende. Rückbesinnung und Ausblick* (Beck 2000) 47, 53.

¹¹⁷See Günther Jakobs, ‘Terroristen als Personen im Recht?’ (2006) 117 *Zeitschrift für die gesamte Strafrechtswissenschaft* 839, 849.

¹¹⁸Günther Jakobs, ‘On the Theory of Enemy Criminal Law’ in Markus D. Dubber (ed), *Foundational Texts in Modern Criminal Law* (OUP 2014) 415, 424.

¹¹⁹See Fraenkel, ‘Das Dritte Reich als Doppelstaat’ (n 47) 515.

¹²⁰Jakobs, ‘On the Theory of Enemy Criminal Law’ (n 118) 423.

¹²¹*ibid.*

This idea of an ‘unperson’¹²² has provoked substantial criticism, although Jakobs defended himself with a rather technical interpretation. In his view, every act of legal enforcement constitutes an act of the heteronomous ‘administration’ (*Fremdverwaltung*) of a person, ‘and thus depersonalizes’¹²³ the subject. Despite the absolutely different contexts, one cannot but recall at this point Fraenkel’s indignation against the German courts’ *Kanzlissprache*, which justified the outlawing of entire segments of the population.¹²⁴ Admittedly, Jakobs’ more colourful comparison of the de-personified enemy with a ‘wild animal’ and someone ‘acting like Satan’¹²⁵ has been met with even greater criticism, earning him reproaches of brutalisation and dehumanisation.¹²⁶

The importance of criticising terminology and diction in legal theory and practice should not be underestimated, as the foundations and boundaries of the rule of law are not only contested on a practical, but also symbolic and semantic level. More systematically, however, Jakobs has been accused of undermining the equality principle of (penal) law by introducing a dual legal system based on the assessment of persons, fleshed out in the classification of subject types.¹²⁷ Despite this massive normative criticism, and from an empirical point of view, Jakobs’ diagnosis of an enemy criminal law – if this complex deserves the name of ‘law’ at all – is hard to reject. The incarceration of actual or alleged terrorists as ‘unlawful combatants’ in Guantanamo, which ‘approaches the ideal type’ of enemy criminal law,¹²⁸ the justification of torture under the guise of ‘enhanced interrogation techniques’, ‘targeted killings’ and related measures account for a mobilisation of prerogative powers beyond the law. In addition, while the partly preventive orientation of penal and police law is not a new idea, some scholars have observed a ‘shift from a prevention of dangers to a hyper-preventive risk management’,¹²⁹ which has inscribed exceptional tools into everyday law. Technically, this re-orientation of penal and administrative law often entails a growing informalisation of law, which Wolf Heydebrand describes by explicitly referring to Fraenkel:

General clauses, vague legal concepts, ‘ad hoc’ policies, administrative prerogatives and political objectives can be used to bracket or override normative rules, legal precedent, codified law and international conventions. The controversial Patriot Act and the bracketing of the Geneva Convention in dealing with suspected terrorists are contemporary examples.¹³⁰

Thus, Fraenkel’s depiction of the dual state, understood as the competition of governmental principles, might be a rewarding contribution to this debate, as he demonstrates different ways formal rationality and the predictability of law can be undermined – sometimes in an obvious manner and sometimes in a more covered fashion that tries to keep up appearances of legality. At the same time, these developments in penal law could be directed against Fraenkel’s occasionally too schematic accounts of the rule of law, or

¹²²*Ibid* 421.

¹²³*Ibid* 423.

¹²⁴Fraenkel, *Der Doppelstaat* (n 54) 148.

¹²⁵Günther Jakobs, *Staatliche Strafe: Bedeutung und Zweck* (Verlag Ferdinand Schöningh 2004), 41.

¹²⁶See Frank Saliger, ‘Feindstrafrecht: Kritisches oder totalitäres Strafrechtskonzept?’ (2006) 61 *JuristenZeitung* 756, 758–59.

¹²⁷*Ibid*.

¹²⁸Jakobs, ‘On the Theory of Enemy Criminal Law’ (n 118) 421.

¹²⁹Günther Frankenberg, *Political Technology and the Erosion of the Rule of Law: Normalizing the State of Exception* (Edward Elgar 2004) 95.

¹³⁰Wolf Heydebrand, ‘Globalisation and the Rise of Procedural Informalism in Europe and America’ in Volkmar Gessner and David Nelken (eds), *European Ways of Law: Towards a European Sociology of Law* (Hart Publishing 2007) 93, 99.

Rechtsstaatlichkeit, after the Second World War, which puts perhaps too much trust in Western democracies' will to respect the inviolability of law under all circumstances.

Beyond the general duality thesis, one particular aspect of Fraenkel's analysis of Nazi law should be kept in mind for a critical view on contemporary security discourse: the construction of enemies. At first glance, however, the difference of the two constellations is obvious, as the persecution of Jews and other minorities, justified by a totalitarian racist ideology, cannot be compared to terrorists attacking the foundations of the liberal state; this difference must not be levelled. Accordingly, Jakobs, drily commenting on the depersonifying treatment of the 'enemy', states that 'it is after all always a question of losses of status for which the bearer of the loss is himself to blame'.¹³¹ If one does not take refuge in the abstractness of ideal types, this question is evidently more complicated. Jakobs himself postulates a diffuse civic duty to present oneself as a reliable supporter of the legal order – a duty which the citizen must apparently not carry out by just abiding by the law, but by providing further evidence that he or she is not a source of danger.¹³² This illiberal demand corresponds to the politics of general suspicion that infuses risk-oriented law. However, if lawful behaviour is not sufficient, this obligation is not far from the duty to present oneself as a 'constructive force' of the nation in order to profit from the legal certainty provided by the normative state.¹³³ There is certainly often strong evidence that a person's reliability must be questioned; but at the same time, there are numerous cases in which ordinary citizens have been falsely registered by police and surveillance agencies as 'dangerous persons' as the result of a conglomerate of stereotypes, prejudices and ignorance, ultimately leading to their unjustified persecution.¹³⁴

3.3. A European dual state? The emergency politics of the European Union

A last field of research to which Fraenkel's insights have been applied is the decisionist and informal style of the European Union throughout the financial crisis, which broke out in 2008. Hauke Brunkhorst suggests that the structures that emerged during this phase constitute a genuine 'European dual state'.¹³⁵ Like many other scholars who avail themselves of this prominent label in other contexts, Brunkhorst makes no effort to justify this conceptual use by engaging in a discussion about Fraenkel's premises. Rather, he picks up only the central distinction between the prerogative and the normative state. This procedure raises the question of whether it is possible to speak of a dual state beyond the state. As far as statehood is concerned, this was the somewhat natural framework for political analysis during Fraenkel's time. His concept of the state in *The Dual State* is not narrowly legally oriented, which becomes clear in his introductory statement, writing

when we speak of the state therefore we are using the term in its broader sense, i.e., as the entire bureaucratic and public machine consisting of the state in the narrower sense and of the party with its auxiliary organizations.¹³⁶

¹³¹Jakobs, 'On the Theory of Enemy Criminal Law' (n 118) 417.

¹³²See Saliger (n 126) 759–60.

¹³³See Fraenkel, *The Dual State* (n 3) 89; 102.

¹³⁴See Frankenberg (n 129) 204; William Bourdon, *Les dérives de l'état d'urgence* (Plon 2017) 73–128.

¹³⁵Hauke Brunkhorst, 'The European Dual State: The Double Structural Transformation of the Public Sphere and the Need for Repoliticization' in Jiří Přibáň (ed), *Self-Constitution of European Society. Beyond EU Politics, Law and Governance* (Routledge 2018) 239.

¹³⁶Fraenkel, *The Dual State* (n 3) xxv.

As we saw at the beginning, Fraenkel views the term ‘dual state’ as adequate when authority or governmental power is structurally unified, though exercised according to two different governmental principles. This focus does not rule out *per se* forms of statehood beyond the nation-state. However, the EU – like some of the aforementioned hybrid or even democratic regimes – lacks not only this Schmittian element of unconstrained sovereignty and the unilateral power of decisionism, but constitutes a multilevel system that combines supranational and intergovernmental rules and procedures without a clearly definable centre of sovereign authority.¹³⁷ Hence, this case is very dissimilar from the structure Fraenkel describes (again, also in regard to questions of terror and ideology).

The EU is obviously not authoritarian in this strict sense of unconstrained governmental power; nevertheless, a recent ‘authoritarian turn’ in the EU political process has been observed,¹³⁸ which might partly be illuminated by Fraenkel’s categories. The reason is that the form and communication of crisis management during the last decade have occasionally raised doubts about the EU’s strict commitment to legality – let alone substantially democratic legitimacy which had already been underdeveloped before the financial crisis erupted. While the European edifice was conceived from the start as a legal community, most notably by the first president of the European Economic Community Walter Hallstein,¹³⁹ and European transformation has steadily followed the maxim ‘integration through law’, several critics have reproached the political executive for massively relying on prerogative powers in the wake of the crisis. Brunkhorst writes in his passionate and sometimes deliberately polemic account that ‘an economic state of siege was declared’.¹⁴⁰ At the same time, Jonathan White more soberly describes the structure of the new ‘Emergency Europe’, in which ‘actions departing from conventional practice are rationalised as necessary responses to exceptional and urgent threats’ and manifested ‘in the contravention of norms that may or not be legally codified, and in acts of legal improvisation as much as suspension’.¹⁴¹ Despite a widespread political discourse of emergency, the EU – which Brunkhorst sarcastically calls the ‘ever closer United Executive Bodies of Europe (UEB)’¹⁴² – has not opted for an open breach of law, but rather often dubious ways of ‘legal improvisation’ and the non-transparent ad hoc creation of special institutions, such as the Troika.¹⁴³ The ‘creative’ bypassing and later reinterpretation of the ‘no bail-out clause’ in Article 125 of the Treaty on the Functioning of the European Union (TFEU), which prohibits any liability of EU member states for the debts of each other, is one outstanding example. Noteworthy in this context is also the self-empowerment of the European Central Bank (ECB) to buy sovereign bonds issued by heavily indebted Eurozone members in the framework of its Outright Monetary Transactions Program (OMT), which has often been considered a transgression of the ECB’s

¹³⁷This is also recognised by Brunkhorst beyond the European case: ‘Today, political sovereignty tends to be transformed into a decentred procedure of political and economic actors, agencies and networks, which form regionally closed systems within a global network of politico-economic institutions based on a new mix of public international and transnational civil law’ (Brunkhorst (n 135) 256).

¹³⁸See Christian Kreuder-Sonnen, ‘An Authoritarian Turn in Europe and European Studies?’ (2018) 25 *Journal of European Public Policy* 452.

¹³⁹See Walter Hallstein, ‘Die EWG – Eine Rechtsgemeinschaft’, in Hallstein, *Europäische Reden* (DVA 1979) 341.

¹⁴⁰Brunkhorst (n 135) 248.

¹⁴¹White, ‘Emergency Europe’ (n 7) 300.

¹⁴²Brunkhorst (n 135) 244.

¹⁴³*Ibid* 252–53; see also Jan Christoph Suntrup, ‘From Emergency Politics to Authoritarian Constitutionalism? The Legal and Political Costs of EU Financial Crisis Management’ (2018) 19 *German Law Journal* 375.

mandate (a ‘breach of the constitution [...] healed legally by the ECJ on 6 June 2015’¹⁴⁴).

While Brunkhorst is mostly concerned with what he identifies as the further deterioration of the EU’s democratic plight by irresponsible technocracy, it is notable how his assessment of this emergency politics misses the subtleties of Fraenkel’s analysis. In Brunkhorst’s words, the ‘European Dual State’ becomes manifest in a ‘regime that frequently uses exceptional measures (prerogative state), even if all its actions are regularly backed by the normative state’¹⁴⁵ – in other words, by the EU Court of Justice and national supreme and constitutional courts. This tempting description is superficial. Fraenkel instead insisted that the normative state (such as his prerogative counterpart) is not sufficiently understood as an institutional constellation of courts and related agents, as the rationality of the prerogative state (as a mode of government) can be expressed *within* the realm of the presumed guardians of the normative state. According to some observers, ‘present-day exceptionalism is more generally characterized by courts procedurally upholding the appearance of judicial checks on executive power while substantially providing legal cover for emergency measures through (sometimes far-fetched) teleological interpretations of authority functions’.¹⁴⁶ This thesis cannot be empirically scrutinised here, but Fraenkel already illustrated how the prerogative state can invade the normative state and undermine the formal rationality attributed to it through deferent and obedient court rulings.

The consequences of this invasion are, of course, significantly different from a political system on its way to full authoritarianism, and actually conceiving the EU as a ‘dual union’ seems more of a warning provocation than an analytically pertinent judgement. Nevertheless, the EU’s recent transformation shows new grades of regulation (e.g. through the surveillance of budgets and member states’ fiscal policies) that were established by rather authoritarian means.¹⁴⁷ The high price for this procedure is that we now have, as Poul Kjaer states alluding to Fraenkel’s work,

a ‘dual Union’ which is partly formal and partly informal, factually characterised by a side-stepping of the democratic procedures and oversight of the Member State parliaments and the European Parliament, as well as limited space for judicial review and a limited possibility to rely on fundamental rights as the framework for structuring exchanges between the EU, as a repository of public power, and the rest of society. This again opens up for the arbitrary implementation of norms and selective sanctioning of violations of norms as is already apparent in the different treatment of Member States in relation to the handling of the Euro-crisis. The new framework, in other words, opens up for the selective exercise of coercion.¹⁴⁸

One should certainly not overstress potential analogies, although any reader of Fraenkel might recall at this point how he described the dual state he was facing: as a combination

¹⁴⁴Brunkhorst (n 135) 256.

¹⁴⁵*Ibid* 250.

¹⁴⁶Christian Kreuder-Sonnen, ‘Global Exceptionalism and the Euro Crisis: Schmittian Challenges to Conflicts-Law Constitutionalism’ in Christian Joerges and Carola Glinz (eds), *The European Crisis and the Transformation of Transnational Governance. Authoritarian Managerialism versus Democratic Governance* (Hart Publishing 2017) 71, 75; see also White, ‘Emergency Europe’ (n 7) 306. For an overview of important court rulings, see Federico Fabbrini, ‘The Euro-Crisis and the Courts: Judicial Review and the Political Process in Comparative Perspective’ (2014), 32 *Berkeley Journal of International Law* 64.

¹⁴⁷See White, ‘Emergency Europe’ (n 7) 307.

¹⁴⁸Poul F. Kjaer, ‘European Crisis of Legally-Constituted Public Power: From the “Law of Corporatism” to the “Law of Governance”’ (2017) 23 *European Law Journal* 417, 429.

where the ‘gospel of efficiency’ was preached and its implementation tried ‘by means of increased arbitrariness’.¹⁴⁹ What is hard to deny, however, is the truth of his observation from the last days of the Weimar Republic: a reliance on prerogative powers is bound to the danger of hurting citizens’ sense of justice and the respect for law.

4. Conclusion

It is a banality that it should not be expected from Fraenkel’s work to serve as a toolbox for all the troubling contemporary developments in which basic principles of the rule of law are undermined or not even sought – although today’s authoritarian regimes and democratic polities that give way to prerogative means in a law-eroding way are *officially* often strongly committed to the ideal of legality as well as usually more subtle in their use of prerogative power than previous authoritarian regimes. At the same time, the discussion of enemy criminal law showed that recourse to openly law-ignoring measures is occasionally argued for vehemently. Thus, it comes as no surprise that Fraenkel’s seminal study on the dual state is currently experiencing a modest renaissance. My aim was to show under which circumstances his analysis can be a useful guide in the endeavour to understand the fragile condition of law in the new age of the prerogative. Beyond that, my article makes a plea to respectfully and profitably deal with a classic work: Instead of exploiting it in a superficial way, only a close and critical reading can fully reveal insights that we should take seriously as well as other conceptions we can now confidently leave behind. On this path, we might engage in a collective discussion about which kind of ‘classic’ we are dealing with: one to confine in the historical museum of political and legal thought or rather one that tells us interesting perspectives about the contemporary world. I contend that Fraenkel should be counted among the latter group.

Disclosure statement

No potential conflict of interest was reported by the author(s).

¹⁴⁹Fraenkel, *The Dual State* (n 3) 71.